

25STCV12403 25STCV12403

County: los-angeles

Division: Civil Law and Motion

Department: 512

Hearing date: 2026-07-17

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Case Number: 25STCV12403 Hearing Date: July 17, 2026 Dept: 512

HEARING

DATE: Fri., July 17, 2026 JUDGE /DEPT: Mkrtchyan/512

CASE NAME: Polanco

v. Sawhorse Prod., LLC, et al. COMPL.

FILED: 04-29-25

CASE NUMBER: 25STCV12403

XCOMPL. FILED: 04-06-26

NOTICE:

OK

PROCEEDINGS: MOTION TO CONTINUE TRIAL AND ALL TRIAL RELATED DATES

MOVING PARTY: Cross-Defendant Sawhorse

Productions, LLC

RESP. PARTY: Plaintiff Silvia Polanco

MOTION TO CONTINUE TRIAL

(CRC, Rule 3.1332)

TENTATIVE RULING:

Cross-Defendant Sawhorse

Production, LLC's Motion for an Order Continuing the Final Status Conference

and Trial and All Trial Related Dates is GRANTED.

Jury Trial is CONTINUED TO March 15, 2027 at 9:30 a.m. in Department 512 of Stanley Mosk Courthouse. Final Status Conference is scheduled for March 5, 2027 at 9:30 a.m.

Parties are required to appear in person at the Final Status Conference.

Parties are ordered to follow Department 512's courtroom rules for trial preparation.

Moving party is ordered to give notice.

SERVICE:

☒ Proof of Service Timely Filed (CRC, rule 3.1300) OK

☒ Correct Address (CCP §§ 1013, 1013a) OK

☒ 16/21 Court Days Lapsed (CCP §§ 12c, 1005(b)) OK

OPPOSITION: Filed
on July 6, 2026 ☐ Late ☐ None

REPLY: Filed
on July 10, 2026 ☐ Late ☐ None

ANALYSIS:

I.

Background

On April 29, 2025, Plaintiff Silvia Polanco ("Plaintiff") filed a Complaint for Damages against Defendants Sawhorse Productions, LLC, Takeone Network Corp. dba Wrapbook, Victor Sun, and Jimmy Dower ("Defendants") and Does 1-100, alleging 16 causes of action. (Compl., pp. 1-2.)

On March 3, 2026, Plaintiff's counsel,
in pertinent part, informed the Court that the case has been resolved only as
to the corporate defendants. (3/3/26 Order.)

On March 24, 2026, Sawhorse
Productions and Takeone Network Corp. were dismissed with prejudice as to the
Complaint.

On April 6, 2026, Cross-Complainants
Victor Sun and Jimmy Dower filed a Cross-Complaint for Contractual Indemnity,
Equitable Indemnity, Contribution, Breach of Contract, Negligence, and
Declaratory Relief against Cross-Defendants Sawhorse Productions and Cast
Locations, LLC, and Roes 1-10. (Cross-Compl.)

On June 15, 2026, Cross-Defendant
Sawhorse Productions ("Sawhorse Productions") filed the instant Motion for an
Order Continuing the Final Status Conference and Trial and All Trial Related
Dates (the "Motion").

That same day, Sawhorse Productions
filed an Answer to the Cross-Complaint.

On July 6, 2026, Plaintiff filed an
Opposition.

That same day, Cross-Complainants
filed a Joinder to the Motion.

On July 10, 2026, Sawhorse Productions
filed a Reply to the Motion.

II.

Legal Standard & Discussion

Sawhorse

Productions requests a continuance of trial and all related dates by 120 days "due
to the fact that Cross-Defendant recently entered into this case on June 15,
2026 and requires additional time to conduct discovery and prepare for trial."
(Motion, p. 2, Su Decl.)

In Opposition, Plaintiff states the Motion should be denied as Plaintiff and Sawhorse Productions have exchanged multiple rounds of discovery in the instant action; Sawhorse Productions has full knowledge of this case through its prior participation in the action involving the Complaint; Cross-Complainants' Joinder to the Motion is not grounds to grant the Motion; Plaintiff would suffer prejudice if trial were continued; and the requested continuance length is excessive. (Opp., pp. 5-9, Minnick Decl.)

In Reply, Sawhorse Productions states that any discovery undertaken regarding the Complaint is irrelevant as to the action involving the Cross-Complaint, and the Opposition fails to establish how a four-month continuance is excessive. (Reply, pp. 2-4.)

California Rules of Court, Rule 3.1332, subdivision (c) states: "Although continuances of trials are disfavored, each request for a continuance must be considered on its own merits. The Court may grant a continuance only on an affirmative showing of good cause requiring the continuance." Circumstances that may indicate good cause include: the excused unavailability of a party, trial counsel, or witness; the substitution of trial counsel if the substitution is required in the interests of justice; the addition of a new party in certain circumstances; a party's excused inability to obtain essential testimony, documents, or other material evidence despite diligent efforts; or a significant, unanticipated change in the status of the case. (Cal. Rules of Court, subd. (c)(1)-(7).)

The Court may also look to the following factors in determining whether a trial continuance is warranted: (1) proximity of the trial date; (2) whether there was any previous continuance, extension, or delay of trial due to any party; (3) the length of the continuance requested; (4) the availability of alternative means to address the problem that gave rise to the motion; (5) the prejudice that parties or witnesses will suffer as a result of the continuance; (6) if the case is entitled to preferential trial setting; (7) the court's calendar; (8) whether trial counsel is engaged in another trial; (9) whether all parties have stipulated to the continuance; (10) whether the interests of justice are best served by the continuance; and (11) any other fact or circumstance relevant to the fair determination of the motion or application. (See generally Cal. Rules of Court, rule 3.1332, subd. (d)(1)-(11).)

Here, the Court first notes that

the Motion and supporting declaration are very sparse and fail to fully flesh out the reasons supporting good cause for continuance of trial. Sawhorse Productions is cautioned to ensure any filing with the Court contains a full account and analysis of all pertinent details and requirements.

That said, the Court finds the Motion contains enough to make an affirmative showing that good cause exists for a 120-day trial continuance in this matter. The Motion and evidence before the Court demonstrate Sawhorse Productions was dismissed from the action regarding the Complaint and only appeared in the action on the Cross-Complaint on June 15, 2026. (Opp., p. 3, Su Decl., ¶ 3.) Sawhorse Productions' counsel declares that no discovery has been done on the action involving the Cross-Complaint, including that Plaintiff's deposition has not been taken. (Opp., Su Decl., ¶ 3.) Thus, the Court finds that a 120-day trial continuance would give the parties time to complete discovery and adequately prepare for trial on the Cross-Complaint.

Further, the Court notes that this is the first continuance in this matter, the continuance request is limited, the interests of justice are best served by a continuance, and Plaintiff will not suffer prejudice from a brief trial continuance.

Finally, the Court notes that Cross-Complainants Victor Sun and Jimmy Dower also submitted a Joinder to the Motion.

For these reasons, the Motion is GRANTED.

III.

Conclusion & Order

Based on the foregoing, Cross-Defendant Sawhorse Production, LLC's Motion for an Order Continuing the Final Status Conference and Trial and All Trial Related Dates is GRANTED.

Jury Trial is CONTINUED TO March 15, 2027 at 9:30 a.m. in Department 512 of Stanley Mosk Courthouse. Final Status Conference is scheduled for March 5, 2027 at 9:30 a.m.

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